

the 47 Ed. 3. 15. that a Judge who hath a commission, viz. that is of record, shall not be charged in conspiracy; which is to be understood of what he did in Court, for the reasons and causes aforesaid: and with this agree the books, 21 Ed. 4. 67. & 27 Ass. pl. 12. and the reason is for this, that though the party is acquitted, yet the accusing stands with the record: and accordingly was the law taken in this case. But in an hundred-court, or other Court which is not of record, there averment may be taken against their proceedings, for that it is no other than matter *in pais*, and not of record; as it appears in the 47 Ed. 3. 15. Also one shall never assign for error, against that which the Court doth as Judges; as to say, that the jury gave verdict for the defendant, and the Court did enter it for the plaintiff, or to say that the party who levied the fine was dead before the fine was levied, or such like. *Vide* 1 H. 6. 4. 39 H. 6. 52. 7 H. 7. 11 H. 7. 4. 28. 1 Mar. Dyer 89. But in a writ of false judgment, the plaintiff shall have a direct averment against that which the Judges in the Inferior Court have done as Judges, *quia recordum non habent*; and with this accords 21 H. 6. 34. And as a Judge shall not be drawn in question in the cases aforesaid, at the suit of the parties, no more shall he be charged in the said cases before any other Judge at the suit of the King. And for this in the 27 Ass. pl. 18. one was indicted and arraigned at the suit of the King, that as he was a justice of oyer and terminer, where certain persons were indicted [25] of trespass before him, he made an entry of record, that they were indicted of felony: and it was adjudged that this indictment was against the law, for this that he was a justice by commission; and that is of record; and this present Act shall be to defeat the record, *hoc est*, to aver against that which he did as Judge of Record, which cannot be by the law. *Vide* 27 Ass. pl. 23. 2 R. 3. 9. 28 Ass. pl. 21. 9 H. 6. 60. And it was said, that it was the case of one Nudigate, who as a justice of peace had recorded a force upon a view, which he did as Judge upon record; and a bill was exhibited against him in this Court, for this, that he had falsely made a record, where indeed there was not any force: and by the opinion of Catlyn and Dyer, Chief Justices, it was resolved, that that thing, that a Judge doth as Judge of Record, ought not to be drawn in question in this Court (c).

Note well, that the said matters done at the Bar were not examinable in the Star-Chamber; and for this it was ordered and decreed by all the Court, that the said bill without any answer to it, by the said Richard Barker, shall be taken off the file and cancelled, and utterly defaced: and it was agreed, that insomuch as the Judges of the realm have the administration of justice, under the King, to all his subjects, they ought not to be drawn into question for any supposed corruption, which extends to the annihilating of a record, or of any judicial proceedings before them, or tending to the slander of the justice of the King, which will trench to the scandal of the King himself, except it be before the King himself; for they are only to make an account to God and the King, and not to answer to any suggestion in the Star-Chamber; for this would tend to the scandal and subversion of all justice. And those who are the most sincere, would not be free from continual calumniation, for which reason the orator said well, *invigilandum est semper, multæ insidiæ sunt bonis*.

And the reason and cause why a Judge, for any thing done by him as Judge, by the authority which the King hath committed to him, and as sitting in the seat of the King (concerning his justice) shall not be drawn in question before any other Judge, for any surmise of corruption, except before the King himself, is for this; the King himself is *de jure* to deliver justice to all his subjects; and for this, that he himself cannot do it to all persons, he delegates his power to his Judges, who have the custody and guard of the King's oath.

And forasmuch as this concerns the honour and conscience of the King, there is great reason that the King himself shall take account of it, and no other.

And Thorp's judgment, who was drawn in question for corruption before commissioners*, was held against the law, and upon that he was pardoned; and it is

(c) *Vid. acc. Basten v. Carew*, 3 Barn. and Cress. 649. S. C. 5 Dow. and Ryl. 558. *Vul.* also note (g) *The Marshalsea case*, 10 Co. 76 a.

* See Cotton's Records 74. 316. That Thorp's judgment was by Parliament adjudged just and legal: but in truth the whole set of Judges were then so corrupt that the King was forced to try him by commission.—*Note to former edition.*